and July 2022 that remain pending with the government. Other names reiterated by the collegium are also pending.

On November 28, a two-judge SC bench, headed by Justice Sanjay Kishan Kaul, warned the Union government against "frustrating the entire system" by delaying judicial appointments and asked it to follow the time-bound appointment procedure. The next day, the government appointed two new judges in the Bombay HC but returned 20 older recommendations, including the 10 names reiterated by the collegium. Justice Dutta's recommendation is still pending.

Rijiju, however, refuses to take the blame for the delays. On November 25, he said, "Don't say we are sitting on the files. But if you want to say so, then appoint judges on your own and run the show." The law minister has numbers on his side. Between 2014 and 2021, the current NDA government appointed an average of 92 HC judges a year, up from 76 between 2006 and 2014. More than 180 HC judges have been appointed during Rijiju's tenure. The Centre has also created 198 new positions for judges in the high courts since 2014.

Despite these appointments, 331 vacancies, or 30 per cent of the sanctioned strength of 1,104 judges, in the 25 HCs lie vacant currently, though the percentage of vacancies has dropped from 50 per cent in 2021. In the apex court, which has a total strength of 34 judges, seven positions lie vacant. The significance of these vacancies is best understood when compared to the pendency of cases in the SC and HCs—nearly 70,000 in the apex court and 6 million in the HCs.

Both the executive and judiciary are to blame. If the Centre is yet to clear names for 148 HC appointments, the collegiums are yet to send proposals for the appointment of 183 judges. Despite seven vacancies in the SC, the collegium in September was unanimous only on one name among the 11 considered. It only underlines the need for greater cooperation between the executive and judiciary as the new CJI D.Y. Chandrachud recently highlighted. He very well understands that a deadlock will seriously impact his tenure—the new collegium led by him will have to fill 19 vacancies in the SC in the next two years.

THE ORIGINS OF THE COLLEGIUM

The Constitution, incidentally, makes no mention of the collegium. Article 124 provides that every Supreme Court judge be appointed by the President of India after consulting SC and HC judges. For appointments other than his own, the CJI must be consulted. Article 217 requires that the President appoint every high court judge after consulting the CJI, the state governor and, apart from his own appointment, the chief justice of the relevant high court. The President, though, is not bound by the advice of the judiciary. In practice, recommendations were initiated by the CJI and sent to the law and justice minister. If the latter agreed, he, with the concurrence of the prime minister, would so advise the President, who would make the appointment. It was, therefore, primarily an executive-led appointment system.

This system faced criticism on several counts. In 1958, the Law Commission of India argued that it did not allow for the best talent to be appointed to the court, and that in many cases "executive influence exerted from the highest quarters" was responsible for the appointment of some judges. The commission was also critical of emphasis being placed on "communal and regional considerations" in making appointments to the Supreme Court. Later, in 1973, the then prime minister Indira Gandhi was widely criticised for superseding three senior judges and appointing Justice A.N. Ray as the CJI.

A SHORT HISTORY OF JUDICIAL APPOINTMENTS

BEFORE THE COLLEGIUM SYSTEM, the President appointed the judges in the Supreme Court and high courts acting on the aid and advice of the Council of Ministers and in 'consultation' with the Chief Justice of India or other judges of the SC and HCs. The President was, however, not bound by the advice of the judges.

IN 1958, the Law Commission of India argued that this system of appointment did not allow for the best talent to be appointed to the courts

IN 1981, this system of appointment was challenged on the ground that it impedes judicial independence. The Supreme Court held that in the event of a disagreement between the executive and the Chief Justice, the views of the executive would prevail.

ANOTHER CHALLENGE was mounted in 1993. Overturning its previous decision, the SC held that judicial independence was part of the unamendable basic structure of the Constitution, and to protect this principle, the judiciary must have 'primacy' over the appointments process. This judgment introduced the collegium-led appointments system.



"Some of the finest judges in India came from the system where the executive appointed the judges. It fell to disrepair when the executive breached the line"

– HARISH SALVE, *Supreme Court lawyer, King's Counsel*